

Court No. - 34

Case :- WRIT - C No. - 11735 of 2020

Petitioner :- Anis Ansari

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And
2 Others

Counsel for Petitioner :- Jahangir Haider

Counsel for Respondent :- Ajay Kumar

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vivek Varma,J.

Sri Krishna Agarwal, learned Advocate states that Sri Ajay Kumar, learned Advocate has been served a copy of the writ petition, on behalf of the respondent no.1, is not competent to receive notice.

Learned counsel for the petitioner prays for adjournment to enable him to serve a copy of the writ petition on Sri Krishna Agarwal, learned Advocate appearing for the Pashchimanchal Vidyut Vitran Nigam Ltd. within three days from today.

As prayed, put up this matter as fresh on 14.08.2020 showing the name of Sri Krishna Agarwal as counsel for the respondents.

Order Date :- 6.8.2020

Lbm/-

Court No. - 1

Case :- WRIT - C No. - 11735 of 2020

Petitioner :- Anis Ansari

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. And
2 Others

Counsel for Petitioner :- Jahangir Haider

Counsel for Respondent :- Ajay Kumar

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Singh,J.

Heard Sri Jahangir Haider, learned counsel for the petitioner and Sri Krishna Agarwal, learned counsel for respondents and perused the record.

Learned counsel for the petitioner has come up before this Court disputing the bill which is in question.

Sri Krishna Agarwal, learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach Consumer Grievance Redressal Forum & Electricity Ombudsman.

In view of the above, we **dispose of** the writ petition with liberty to the petitioner to approach the forum and we further direct that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed assessment within three weeks from today along with copy of this order, the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

Till then, no coercive action shall be taken against the petitioner.

The party shall file computer generated copy of order downloaded from the official website of High Court Allahabad, self attested by it alongwith a self attested identity proof of the said person(s) (preferably Aadhar Card) mentioning the mobile number(s) to which the said Aadhar Card is linked, before the concerned Court/Authority/Official.

The concerned Court/Authority/Official shall verify the authenticity of the computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

(Ajit Singh,J.) (Ramesh Sinha, J.)

Order Date :- 28.8.2020

Tamang